

2021 P L C (C.S.) 263

[Lahore High Court]

Before Jawad Hassan, J

BILAL HASSAN

Versus

GOVERNMENT OF THE PUNJAB and others

Writ Petition No.65421 of 2017, heard on 21st October, 2020.

Civil service---

---Contract of employment, cancellation of---Scope---Petitioner assailed termination of his contract of employment---Stance of department was that work and conduct of petitioner had remained unsatisfactory and his contract was terminated on the basis of unsatisfactory performance; that an explanation notice was served upon him but instead of giving reply, he along with others manhandled with the officer and injured some other officials, violated discipline and created harassment and terrorism in the office premises; that the incident was ordered to be probed/investigated and that on the recommendations of the inquiry committee, guilty persons were recommended to be dealt with under the rules---Validity---Petitioner was terminated on the recommendations of the inquiry committee by invoking relevant clause of the letter of appointment---Petitioner at the time of joining had accepted all the terms and conditions of his contract employment and could not resile from the same and it was also established from the record that his performance had remained unsatisfactory---No illegality or perversity was found in the impugned order which was passed in accordance with law---Constitutional petition was dismissed.

Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor 2018 PLC (C.S.) Note 1; Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others 2018 PLC (C.S.) 722; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488 and Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 rel.

Munawar Ahmad Javed for Petitioner.

Barrister Hassan Khalid Ranjha, Assistant Advocate General for Respondents.

Zia Ahmad Mujahid for Respondent No.3.

Date of hearing: 21st October, 2020.

JUDGMENT

JAWAD HASSAN, J.----The Petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging his termination order dated 31.05.2017 passed by the Respondent No.2.

2. Facts of the case, as per petition, are that the Petitioner was appointed as Naib Qasid (BS-01) on contract basis under Rule 17-A of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 (the "Rules") vide appointment order dated 23.02.2016 and his services were to be regulated under the Contract Appointment Policy, 2004 (the "Policy"). The Respondent No.3 maltreated the Petitioner and tried to commit unnatural offence with him however, he reported the matter to concerned SHO by lodging a complaint on 09.05.2017 but in vain. Rather an F.I.R. was lodged against the Petitioner and others. In this backdrop he was terminated from service on 31.05.2017.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. Learned counsel for the Petitioner inter alia contended that before passing of impugned order, the Petitioner was neither charge sheeted nor any show cause notice was issued; that the Petitioner was condemned unheard as no opportunity of hearing was provided to him; that discriminatory treatment has been meted out with the Petitioner as other persons who were also involved in aforesaid F.I.R. were charge sheeted as well as notices of inquiry were issued to them but the Petitioner was straightway terminated from service; that the impugned order is based on mala fide as the Petitioner lodged a complaint against the Respondent No.3 before registration of F.I.R.; that the Petitioner was employed against a regular post therefore, he could not be ousted from employment arbitrarily without holding any inquiry.

5. On the other hand, learned Law Officer as well as counsel for the Respondent No.3 vehemently opposed the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the Petitioner was appointed purely on temporary basis and he was terminated on the basis of unsatisfactory performance under Clause-II of Clause XVII of the Policy after the recommendations of the probe report.

6. I have heard learned counsel for the parties and gone through the available record.

7. The appointment of the Petitioner as Naib Qasid on contract basis vide order dated 23.02.2016 under Rule 17-A of the Rules is not disputed by all hands. A ground alleged by the Petitioner is that he was appointed as a Naib Qasid against a permanent post. It evinces from the record that the Petitioner was appointed on contract basis. His appointment was purely temporary. He, after accepting the terms and conditions of his contract employment submitted his joining report. Specific term in the employment contract, containing certain terms and conditions, were inserted which reads as follows:

1. The contract appointment will not confer upon him any right for appointment on regular basis or regularization of service.

2. Contract appointment will neither confer any right for regular appointment to the same post nor shall the service count towards seniority and pension. The appointment shall be purely temporary;

The above Clauses explicitly show that the appointment was purely temporary which would not confer any right of regular appointment, meaning thereby that the Petitioner has no vested right that his period of service be extended for further time. Thus, this ground has no force.

8. The Petitioner in the petition has alleged that the Respondent No.3 tried to commit unnatural offence pursuant to which he reported the matter to concerned police station. Suffice it to say, the Respondents lodged an FIR against the Petitioner and other officials on 08.05.2017 with respect to an incident occurred at the office of the Respondents while he lodged a complaint on 09.05.2017 one day after lodging of FIR which clearly shows that it was filed as a counter blast in order to blackmail the Respondents which even otherwise is also without any medical evidence and negated by the Respondents. Furthermore, mala fide on the part of the Respondents is alleged for termination of the Petitioner but nothing in respect thereof has been proved on record, as such mere allegation of mala fide is not sufficient to set aside the impugned order.

9. So far as the ground agitated by the Petitioner with regard to non-issuing of show-cause notice or affording personal hearing is concerned, the perusal of employment letter clearly depicts that the Petitioner was appointed on contract basis under the Policy and his terms of service were regulated under that Policy. Clause XVII(II) of the Policy clearly states that contract appointments are generally not terminated before the expiry of term of contract unless it is clearly determined that performance of a contract employee is unsatisfactory or he is guilty of inefficiency, misconduct or corruption. Basically the Petitioner has disputed termination order dated 31.05.2017. The relevant portion of the same is reproduced hereunder:

"While working under the Assistant Agricultural Engineer (F.O) Faisalabad as Naib Qasid, the performance and conduct of Mr. Bilal Hassan before 08.05.2017 and as per recommendations made by investigation committee constituted for the incident happened on 08.05.2017 by the Director Agricultural Engineering, Faisalabad vide orders bearing Endst No.2287-90/2-586/Estt: dated 08.05.2017 has proved unsatisfactory".

10. The above order explicitly shows that the performance and conduct of the Petitioner was unsatisfactory. The Respondents in the report and parawise comments have stated that the Petitioner is habitual to leave the office without prior permission and availed self-styled leave and upon his behavior, explanation were sought from many a times but he violated the instructions of superiors and did not mend himself. It is also stated by the Respondents that service career/work and conduct of the Petitioner remained unsatisfactory and his contract was terminated on the basis of unsatisfactory performance because on 06.05.2017, explanation notice was served upon him but instead of giving reply, he along with others manhandled with the officer and injured some officials violating/breaching discipline and created harassment and terrorism in the office premises. The said incident was ordered to be

probed/investigated and on the recommendations of the Inquiry Committee, the guilty persons were recommended to be dealt with under the Rules. Clause 9 of the appointment letter also clearly demonstrate that the performance of the appointee shall be assessed on the basis of efficiency and conduct as laid down by the competent authority. Although Clause-5 of the letter of appointment states that the contract appointment shall be liable to be terminated on one month's notice or on payment of one month's salary in lieu thereof by either side without assigning any reasons. According to this Clause, if termination is to be effected, it must be without reasons and in such a situation one month's notice or payment of one month's salary is must. In the case in hand, the Respondents terminated the Petitioner on the recommendations of the Enquiry Committee dated 24.05.2017 by invoking Clause-XVII(II) of the Policy coupled with Clause-9 of the letter of appointment.

11. From the above facts and circumstances, I am of the considered view that the Petitioner, at the time of joining, has accepted all the terms and conditions of his contract employment, cannot resile from the same at belated stage and also it is established from the record that his performance remained unsatisfactory. I see no illegality or perversity in the impugned order which has been passed in accordance with law and therefore, cannot be interfered with. I am fortified my view seeking guidance from the judgment passed by the Hon'ble Division Bench of this Court in case titled "Shahzad Ghohar v. Government of Punjab and Aitchison College through its Board of Governor" (2018 PLC (C.S.) Note 1) in which it has been held as under:

"It was also made specifically clear that the Employment Contract does not confer on the Appellant any claim/right to permanent employment in the College. In the above situation, the Appellant has himself admitted all the terms and conditions of his Employment Contract, he cannot claim his regularization from this Court rather has rightly been considered to be out of service on the expiry of his contract employment as settled by the parties under the terms of the Employment Contract"

12. This Court in case titled "Muhammad Mohsin Ismail v. Managing Director Punjab Daanish Schools and 2 others" (2018 PLC (C.S.) 722) has also held as under:

"The Respondents have invoked clause-4(b), terminated the services of the Petitioner with immediate effect entitling the Petitioner to receive one month's pay in lieu of the quit service as per terms and conditions, therefore, assertions of the learned counsel for the Petitioner that no notice has been served upon the Petitioner, cannot sustain. The law on this point has been settled by the apex Court of the country in the cases of "Government of Balochistan, Department of Health through Secretary, Civil Secretariat, Quetta v. Dr. Zahida Kakar and 43 others" (2005 SCMR 642) and "Major (R) Nisar Ali v. Pakistan Atomic Energy Commission and another" (2004 PLC (C.S.) 758)".

13. The Hon'ble Division Bench of this Court in case titled "Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others" (2017 PLC (C.S.) 488) has held as under:

"the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period

as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination."

14. In Case titled "Mubashar Majeed v. Province of Punjab and 3 others" (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that

"employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by tending the contract."

15. In view of above discussion, I am not inclined to interfere with the impugned order which otherwise has been passed aptly. Resultantly, the instant petition stands dismissed.

SA/B-12/L

Petition dismissed.